

25NNCV08604 25NNCV08604

County: los-angeles

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Case Number: 25NNCV08604 Hearing Date: June 26, 2026 Dept: P

[TENTATIVE] ORDER SUSTAINING

DEMURRER WITH 20 DAYS' LEAVE TO AMEND

I. INTRODUCTION

This action arises from Plaintiff

Honghua Shang's allegations that Defendants Edgar Ivan Plata Gomez and C&P Mix LLC engaged in unfair business practices. Plaintiff, proceeding in pro per, filed the Complaint on December 4, 2025, asserting a single cause of action for violation of California's Unfair Competition Law (Bus. & Prof. Code, § 17200).

On March 20, 2026, Defendants filed the instant demurrer. No opposition has been filed.

Meet and Confer

Pursuant to Code of Civil Procedure

section 430.41, subdivision (a), the demurring party is required to meet and confer with the party who filed the pleading at least five days before the responsive pleading is due. This must occur in person, telephone or by video conference with the aim of resolving any objections raised in the demurrer. Additionally, the demurring party must file and serve a declaration detailing the meet and confer efforts. It should be noted, however, that the failure to meet and confer is not itself grounds for sustaining or overruling a demurrer or granting or denying a motion to strike. (Code Civ. Proc., §§ 430.41, subd. (a)(4), 435.5, subd. (a)(4).)

Defendant did not file the declaration required by Code of Civil Procedure section 430.41 demonstrating that the parties met and conferred, or attempted to meet and confer, before filing the demurrer. Thus, the requirement not satisfied. However, the Court elects to reach the merits of the motion in the interest of judicial efficiency.

II. LEGAL STANDARD

A demurrer tests the legal sufficiency of a complaint. *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994. A plaintiff's allegations must be accepted as true for purposes of demurrer, no matter how "improbable" they are. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604 (*Del E. Webb*).) Allegations need not be accepted as true if they are contradicted by judicially noticeable facts. (*Cansino v. Bank of America* (2014) 224 Cal.App.4th 1462, 1474.)

Pleadings are to be broadly construed (Code Civ. Proc., § 452) and demurrers are to be overruled where the facts are sufficient to state any cause of action. (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38.)

Code of Civil Procedure section 430.10, subdivision (f) provides for a demurrer where a pleading is uncertain. Demurrers for uncertainty are disfavored and are only sustained where a pleading is so incomprehensible a defendant cannot reasonably respond. (*A.J. Fistes v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695; *Khoury v. Maly's of California* (1993) 14 Cal.App.4th 612, 616.)

III. ANALYSIS

As a preliminary matter, although the demurrer was filed on behalf of both Defendants, the Court addresses the demurrer only as to Defendant Edgar Ivan Plata Gomez. Defendant C&P Mix LLC, a limited liability company, may appear in court only through licensed counsel and may not represent itself through a non-attorney. The record reflects that C&P Mix LLC has not retained counsel or filed a substitution of attorney. Therefore, the Court does not consider the demurrer as to C&P Mix LLC.

Unlawful and unfair business practices

To set forth a claim for a violation of Business and Professions Code section 17200 ("UCL"), Plaintiff must establish Defendant was engaged in an "unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising" and certain specific acts. (Bus. & Prof. Code, § 17200.) A cause of action for unfair competition "is not an all-purpose substitute for a tort or contract action." (Cortez v. Purolator Air Filtration Products Co. (2000) 23 Cal.4th 163, 173.)

Here, Plaintiff's Judicial Council form complaint merely checks the box for other and specifies "Unfair Business Practice" without attaching a cause of action or alleging any supporting facts. Plaintiff does not identify any conduct by Defendant Ivan, any predicate statutory violation, or any facts showing an unlawful, unfair, or fraudulent business practice.

Because the Complaint alleges no facts supporting any of the three prongs of Business and Professions Code section 17200, it fails to state a viable UCL claim. Thus, the demurrer is SUSTAINED with 20 days' leave to amend.

IV. ORDER

The Court SUSTAINS the demurrer with 20 days leave to amend.

Dated: June 26, 2026

JARED D. MOSES

JUDGE
OF THE SUPERIOR COURT